

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in RFA Nos. 1 through 11 are DEEMED ADMITTED by Defendant.
3. The genuineness of the documents attached as Exhibits 1 and 2 to the RFAs, pursuant to RFA Nos. 12 and 13, are DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

11. 9:00 AM CASE NUMBER: L25-05638

CASE NAME: WELLS FARGO BANK, NA VS. JUSTIN CLEVELAND

***HEARING ON MOTION FOR DISCOVERY MOTION FOR ORDER DEEMING TRUTH OF MATTER PLN
REQUEST ADMISSIONS FILED BY PLN ON 09/09/2025**

FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

The Court was advised at the Case Management Conference on November 17, 2025 that the matter has resolved by settlement agreement. The parties were to advise if this motion is dropped. **PARTIES TO APPEAR** unless the moving party requests the matter be dropped from calendar.

12. 9:00 AM CASE NUMBER: MSL20-04573

CASE NAME: AMERICAN EXPRESS VS LEA

***HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT FILED BY PLN ON 09/02/2025**

FILED BY: AMERICAN EXPRESS NATIONAL BANK

TENTATIVE RULING:

Plaintiff American Express National Bank ("Plaintiff") filed a Motion to Enter Judgment on September 2, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on November 25, 2025.

Background

The parties entered into that certain settlement agreement filed on September 6, 2022 (the "Settlement Agreement"), the terms of which included payment by the defendant Harold Lea ("Defendant") in the amount of \$14,832.89, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Plaintiff's Counsel filed September 2, 2025 ("Supporting Declaration"), ¶5 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment for said amount plus costs in the event of a default. *Id.*, **Exhibit A**, ¶10.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration,